

Sententia Iuris Cap. VIII — Latin/ English

<i>Latin</i>	<i>English</i>
CAP. VIII. <i>Pro eadem veritate aduersus aliam viam oppositionum.</i>	Chapter 8. On behalf of the same truth, against another line of objections.
1. IN ALTERA impugnandi via opponit aduersarius Catholicam nostram assertionem variâ & multiplici incertitudine laborare. Primò, quia multi Catholici eam vel reiecerunt, vel in dubium vocarunt. Vnde Stapleton. non audet sententiam eorum, qui dicunt Papam posse iudicialiter errare, censere hæreticam: Ergo nec Protestantes dicentes Ecclesiæ definitionem esse errori obnoxiam, censendi sunt hæretici. Secundò, quia multi Catholici dicunt posse Ecclesiam errare in præceptis morum. Hinc autem sequitur pariter posse errare in Fide. Nec sequelam hanc	1. In a second way of assailing it, the adversary objects that our Catholic assertion labors under a varied and manifold uncertainty. First, because many Catholics have either rejected it or called it into doubt. Whence Stapleton does not dare to judge as heretical the opinion of those who say that the Pope can err judicially; therefore neither are the Protestants to be judged heretics who say that

<i>Latin</i>	<i>English</i>
multi è nostris diffitentur, quamuis non concedant antecedens. Tertiò, quia nondum certò constat, quæ sit suprema definitio Ecclesiæ. Num quæ profertur à Papa, an quæ à Concilio generali? Quartò, quia quamuis in genere constaret veri Papæ iudicium esse supremam Ecclesiæ definitionem; in particulari tamen nescimus, sitne hic vel ille singularis homo verus Papa. Siquidem non cõstat certitudine Fidei diuinæ, quòd sit verè baptizatus. Nam valor Baptismi pendet ab intentione baptizantis, quæ nobis est occulta. Quintò, quia nostri Theologi in explicanda iudiciaria potestate Papæ, & Conciliorum, ea docent, quæ cum infallibilitate videntur pugnare, vt ex aliquot assertionibus Iesuitarum Bellarmini, Gregorij à Valentia, Suaris, & aliorum conatur aduersarius inferre.	the Church's definition is liable to error. Second, because many Catholics say that the Church can err in precepts of morals; and from this it equally follows that she can err in faith. Nor do many of our own men deny this consequence, although they do not grant the antecedent. Third, because it is not yet established with certainty what the supreme definition of the Church is. Is it that which is put forth by the Pope, or that which is put forth by a general Council? Fourth, because, although it were established in general that the judgment of a true Pope is the supreme definition of the Church, yet in particular we do not know whether this or that individual man is the true Pope. Indeed, it is not established with the certitude of divine faith that he is truly baptized; for the validity of Baptism depends upon the

<i>Latin</i>	<i>English</i>
	intention of the one baptizing, which is hidden from us. Fifth, because our theologians, in explaining the judiciary power of the Pope and of the Councils, teach things that seem to be at war with infallibility, as the adversary endeavors to infer from certain assertions of the Jesuits Bellarmine, Gregory of Valencia, Suárez, and others.
2. De hac obiectione ante omnia pronuncio tam ineptam esse, vt nihil sit in mysteriis reuelatis tam certum, quod non possit simili argumento impugnari. Nam in omnibus præter id, quod certum est circa substantiam, & existentiam substantialem rei reuelatæ, annectit Theologia dubitationes, & controuersias de modo nobis occulto, variisque circumstantiis minùs exploratis, vt patet ex tot disputationibus Theologorum in omni materia reuelata. Præsenti nostro instituto, & scopo quadraturæ aduersus calumniam duplicatoris sufficit certitudo Catholicis omnibus semper persuasa de infallibili iudicio supremi Tribunalis Ecclesiastici in rebus Fidei, nec sine	2. Concerning this objection I pronounce, before all else, that it is so inept that there is nothing in the revealed mysteries so certain that it could not be assailed by a similar argument. For in all things, besides that which is certain concerning the substance and the substantial existence of the revealed matter, theology attaches doubts and controversies concerning the manner that is hidden from us, and concerning various circumstances less fully

<i>Latin</i>	<i>English</i>
peculiari duplicatoris mendacio fingitur ab vllis sani iudicij Catholicis, vel negata, vel in dubium reuocata, vt postea pleniùs patebit. Esto huic certitudini fuerit aliquando, & apud aliquos annexa varia incertitudo de annexis & circumstantiis, v. g. Vtrum definitio supremi Tribunalis censenda sit non tâtum quæ fertur à Concilio generali approbato à Papa, vt omnes Catholici fatentur, sed etiam quæ fertur à solo Papa, suppositis supponendis ad maturitatem deliberationis iudiciariæ? Cuius quæstionis partem negantem si aliqui aliquando sequuti sunt sine nota hæresis, non bene colligit aduersarius, Ergo nec Protestantes negantes infallibilitatem Ecclesiæ censendi sunt hæretici. Cõsequentia enim hæc inepta est propter discrimen iam assignatum inter principium à nemine Catholico sani cerebri aliquando negatum, & conclusionem à quibusdam aliquando negatam.	explored, as is plain from so many disputations of the theologians in every revealed matter. For our present undertaking and for the aim of the Squaring against the calumny of the duplicator, there suffices the certitude — always held as persuaded by all Catholics — concerning the infallible judgment of the supreme Ecclesiastical Tribunal [<i>supremum Tribunal Ecclesiasticum</i>] in matters of faith; nor, without a peculiar lie of the duplicator, is it feigned to have been either denied or called into doubt by any Catholics of sound judgment, as will afterward more fully appear. Granted that there has at some time, and among some men, been attached to this certitude a varied uncertainty concerning the things annexed and the circumstances — for example, whether the

<i>Latin</i>	<i>English</i>
	definition of the supreme Tribunal is to be judged to be not only that which is borne by a general Council approved by the Pope, as all Catholics confess, but also that which is borne by the Pope alone, the things-to-be-supposed being supposed for the maturity of judiciary deliberation. If some have at some time followed the negative part of this question without the mark of heresy, the adversary does not rightly conclude: therefore neither are the Protestants who deny the infallibility of the Church to be judged heretics. For this consequence is inept, on account of the distinction already assigned between a principle never at any time denied by any Catholic of sound brain, and a conclusion at some time denied by certain men.
3. Non minor ineptia est in secundo puncto eiusdem obiectionis, vbi ex eo	3. No less is the ineptitude in the second point of the same

<i>Latin</i>	<i>English</i>
quòd aliqui sine nota hæresis dixerint Ecclesiam posse errare in iudicio morum, colligit duplicator eam pariter posse errare in decretis Fidei. Nimis enim ineptum est non aduertere iudicia morum vt plurimum fieri de quæstionibus facti, & niti humana auctoritate testium ex se fallibili. At decreta Fidei non nituntur humanâ, sed diuinâ auctoritate per infallibilem aliquam regulam proposita, spectântque ad quæstionem iuris diuini, & immutabilis.	objection, where, from the fact that some without the mark of heresy have said that the Church can err in a judgment of morals, the duplicator concludes that she can equally err in the decrees of faith. For it is too inept not to advert that judgments of morals are for the most part made about questions of fact, and rest upon the human authority of witnesses, which is of itself fallible. But the decrees of faith do not rest upon human, but upon divine authority, proposed through some infallible rule, and they regard a question of divine and immutable right.
4. Deinde si quis malè temperati cerebri Catholicus anonimus dixerit Ecclesiam posse errare, non tantùm in iudiciis, sed etiam in præceptis morum, quod est errare in quæstionibus iuris auctoritate diuinâ commendati, non debet ex vnus somniaſantis, sibique contradicentis delirio inferri absoluta, & vniuersalis conclusio contra infallibilem auctoritatem à	4. Next, if some anonymous Catholic of ill-tempered brain should say that the Church can err, not only in judgments, but also in precepts of morals — which is to err in questions of right commended by divine authority — there ought not,

<i>Latin</i>	<i>English</i>
sapientibus omnibus Theologis defensam. Dicere, quod dicit duplicator, hoc quod à nobis vocatur delirium, esse multis Pontificiis commune, est apertum mendacium.	from the delirium of one man dreaming and contradicting himself, to be inferred an absolute and universal conclusion against the infallible authority defended by all wise theologians. To say, as the duplicator says, that this which is called by us a delirium is common to many Pontifical writers, is an open lie.
5. In tertio puncto eiusdem obiectionis fingitur maior incertitudo, quàm veritas patiatur. Omnium enim consensu definitio Papalis in Concilio generali consentiente, & approbante; sicut & ipsius Concilij approbati à Papa, est suprema omnium quæ ab humano iudice ferri possunt. Nam ibi sociantur, & in vnum iudicium concurrunt ambæ potestates iudiciariæ, tum propria capitis, summique Pontificis, tum propria Optimatum Ecclesiasticorum. Nihil hoc concursu, & consensu superius fingi potest in humanis.	5. In the third point of the same objection a greater uncertainty is feigned than the truth admits. For by the consent of all, the Papal definition with a general Council consenting and approving — as also that of the Council itself approved by the Pope — is the supreme of all that can be borne by a human judge. For there both judiciary powers are joined and concur into one judgment: both that proper to the head and supreme Pontiff, and that

<i>Latin</i>	<i>English</i>
	proper to the Ecclesiastical Magnates. Nothing higher than this concurrence and consent can be feigned in human affairs.
6. In solo quarto puncto tangitur vulgaris difficultas, ad quam non omnes Catholici eodem modo respondent. Vtrum Fide Catholica constet non tantùm in communi eum, qui canonicè eligitur, esse verum Pontificem, sed etiam in indiuiduo hunc numero v. g. Vrbanum VIII. esse verum coram Deo Pontificem. Verùm quia quæstionem hanc auctor quadraturæ alio suo libro, quem inscribit de spiritali regno Ecclesiæ Christianæ, satis diligenter tractat, & resoluit, satis erit hoc loco ostendere, Vtramuis ea de re opinionem sequamur, siue negantium cum Caietano, Banne, Turrecrem; siue meliùs affirmantium cum aliis, quos ex nostris Ioan. Azor. & Suares sequuntur, præsentem nodum esse facilem. Et quidem in via Suaris, aliorúmque illic affirmantium, nodus hic nullus est. Quia si eadem Fide, quâ creditur in communi auctoritas veri Papæ, credatur etiam in particulari veritas huius indiuidui Papæ, nulla superest incertitudo. In via verò	6. In the fourth point alone is touched a common difficulty, to which not all Catholics respond in the same manner: whether it is established by Catholic faith, not only in general, that he who is canonically elected is the true Pontiff, but also in the individual case, that this man by number — for example, Urban VIII — is the true Pontiff before God. But because the author of the Squaring treats and resolves this question diligently enough in another of his books, which he entitles <i>On the Spiritual Kingdom of the Christian Church</i>, it will be enough in this place to show that, whichever opinion on that matter we follow — whether of those who deny it with Cajetan, Bañez, and

<i>Latin</i>	<i>English</i>
aliorum distinguendum duplicem in hac re certitudinem, vnam omnimodam Fidei diuinæ, quâ in communi creditur auctoritas veri Pontificis, alteram moralem fidei humanæ, quâ veritas huius numero Pontificis creditur, & quæ secum potest aliquando pati aliquam incertitudinem conditionum essentialiter prærequisitarum, vt characteris baptismalis, virilis sexus, & similium; tota difficultas facilè soluitur ab aduertentibus infallibilem assistentiam Spiritus sancti promissam supremo Iudici, & definitori rerum Fidei, non esse promissam vel alligatam personæ definitoris, sed officio, & sedi, ex qua ille loquitur. Sedes autem semper est eadem regula, & materia Fidei diuinæ apud omnes Catholicos; esto, contingat eam aliquando ad breue tempus occupari ab habente occultum impedimentum legitimæ possessionis. Huiusmodi enim impedimentum non ligat omnipotentiam Dei, ne vtatur ministerio Papæ putatiui veram sedem occupantis ad confirmandos fideles, qualiter olim vsus est ministerio Cayphæ Pontificis, quamuis in Christum increduli, ad prophetandum de necessaria morte vnus hominis, ne tota gens pereat, &	Torquemada, or, better, of those who affirm it with others, among whom of our own men John Azor and Suárez follow — the present knot is an easy one. And indeed, in the path of Suárez and of the others who there affirm, this knot is none at all. For if by the same faith by which the authority of a true Pope is believed in general, there be believed also in particular the truth of this individual Pope, no uncertainty remains. But in the path of the others, who distinguish a twofold certitude in this matter — one altogether of divine faith, by which the authority of a true Pontiff is believed in general; the other a moral certitude of human faith, by which the truth of this Pontiff by number is believed, and which can sometimes suffer along with itself some uncertainty concerning conditions

<i>Latin</i>	<i>English</i>
ministerio asinæ ad erudiendum Balaam, & ministerio Pythonissæ ad prædicendam Saüli Regi mortem.	essentially prerequisite, such as the baptismal character, the male sex, and the like — the whole difficulty is easily resolved by those who advert that the infallible assistance of the Holy Spirit [<i>assistentia Spiritus sancti</i>] promised to the supreme Judge and definer of matters of faith is not promised or bound to the person of the definer, but to the office and the see from which he speaks. But the see is always the same rule and matter of divine faith among all Catholics, granted that it happen to be occupied for a short time by one having a hidden impediment to legitimate possession. For an impediment of this kind does not bind the omnipotence of God, so as to keep him from using the ministry of a putative Pope occupying the true see to confirm the faithful — just as of old he used the ministry of

<i>Latin</i>	<i>English</i>
	Caiaphas the Pontiff, although unbelieving in Christ, to prophesy concerning the necessary death of one man, lest the whole nation should perish; and the ministry of the ass to instruct Balaam; and the ministry of the Pythoness to foretell death to King Saul.
7. In quinto puncto sufficit notare assertionem illam Catholicorum à calumniatore perperàm intelligi, deprauari, & trahi ad sensus à mēte auctorum alienos, vt candidus lector facilè aduertet, si dignetur auctores ipsos inspicere, & notare quæ supra diximus de mendaciis, quibus aduersarius deprauat doctrinam communem Theologorum. Exempli caussa, illa Cardinalis Bellarmini assertio, <i>Concilia generalia a Papa confirmata errare non possunt</i> . Censetur ab aduersario ridicula, quòd putetur sic intelligi, vt ante confirmationem Papalem non adsit Concilio Spiritus sanctus ad errorem impediendum.	7. In the fifth point it suffices to note that that assertion of the Catholics is wrongly understood by the calumniator, depraved, and dragged to senses foreign to the mind of the authors — as the candid reader will easily advert, if he will deign to inspect the authors themselves, and to note what we said above concerning the lies by which the adversary depraves the common doctrine of the theologians. For example, that assertion of Cardinal Bellarmine, <i>General Councils confirmed by the Pope cannot err</i> , is judged

<i>Latin</i>	<i>English</i>
	ridiculous by the adversary, because it is supposed to be so understood that, before the Papal confirmation, the Holy Spirit is not present to the Council to impede error.
8. Sed ridenda est calumnia, & ignorantia hominis non aduertentis errare dici quempiam non tantùm quando prior ipse fallitur in se recipiens errorem, sed etiam quando errorem aliis communicat. Hoc ergo posteriori sensu velut actiuo sumptũ errare in assertione Bellarmini nihil sonat ridiculum. Sensus enim est, Sentētia Concilij generalis à Papa confirmata, est nobis infallibilis regula credendi, quæ nec docere potest, nec continere errorem. Vbi præterea omisit calumniator notare particulam, <i>non potest</i>, sæpè sumi sensu logico ad solam repugnantiam terminorum significandam, qui sensus est absolutus à variis respectibus denotatis per eandem particulam sumptam physicè. Nimirùm duplicator nunquam fortè didicit Aristotelicum discrimen à S. Thoma declaratum 1. p. q. 25. art. 3. inter duos modos, quibus aliquid dicitur possibile, vel impossibile, nimirùm vel comparatè, seu cum respectu ad caussam, vel	8. But the calumny is to be laughed at, and the ignorance of a man not adverting that someone is said to err, not only when he himself first is deceived in receiving error into himself, but also when he communicates error to others. In this latter sense, then, taken as it were actively, to err sounds nothing ridiculous in the assertion of Bellarmine. For the sense is: The sentence of a general Council confirmed by the Pope is for us an infallible rule of believing, which can neither teach nor contain error. Where, besides, the calumniator omitted to note that the particle <i>cannot</i> is often taken in a logical sense, to signify only a repugnance of the

<i>Latin</i>	<i>English</i>
absolutè, & præciso hoc respectu. Absoluta possibilitas, vel impossibilitas æstimatur ex sola habitudine prædicati, & subiecti ad seinuicem preciso respectu physico ad causas, debétque propterea vocari potentia, vel impotentia logica. Quando enim prædicatum repugnat subiecto, propositio significat aliquid absolutè impossibile: quando verò prædicatum non repugnat subiecto, propositio significat aliquid absolutè possibile. Quia ergo est absolutè impossibile, vt dictamen Spiritus sancti à Concilio generali pronunciatum, & à Papa declaratum, contineat errorem, rectè, sensùque logico dixit Card. Bellarm. <i>Concilia generalia à Papa confirmata errare non possunt.</i>	terms — which sense is absolute from the various respects denoted by the same particle taken physically. Doubtless the duplicator has perhaps never learned the Aristotelian distinction, declared by St. Thomas (ST I, q. 25, a. 3), between the two modes in which something is said to be possible or impossible: namely, either comparatively, that is [<i>seu</i>], with respect to a cause, or absolutely, this respect being set aside. Absolute possibility or impossibility is estimated from the sole relation of the predicate and the subject to one another, the physical respect to causes being set aside, and ought therefore to be called a logical potency or impotency. For when the predicate is repugnant to the subject, the proposition signifies something absolutely impossible; but

<i>Latin</i>	<i>English</i>
	when the predicate is not repugnant to the subject, the proposition signifies something absolutely possible. Since, therefore, it is absolutely impossible that a dictate of the Holy Spirit pronounced by a general Council and declared by the Pope should contain error, Cardinal Bellarmine rightly, and in a logical sense, said, <i>General Councils confirmed by the Pope cannot err.</i>
9. Dices, quemadmodum ridiculè dicitur quispiam iam mortuus, postquam desiit esse homo, non posse mentiri; sic etiam Concilium generale postquam desiit esse Concilium, non posse errare. Hanc obiectionem subindicat duplicator citato loco, sed ineptissimè. Nam nomen Concilij secundum communem vsum Theologorum sumitur pro cœtu Episcoporum, non tantùm consignificato tempore, quo cœtus iste in seipso durat, sed etiam consignificato toto tempore, quo eius gesta, & decreta durant in tabulis Ecclesiæ, & in memoria hominum. Sic enim de præteritis Conciliis loquimur, quando quærimus an	9. You will say: just as someone already dead, after he has ceased to be a man, is ridiculously said to be unable to lie, so also a general Council, after it has ceased to be a Council, cannot err. The duplicator intimates this objection in the cited place, but most ineptly. For the name of “Council,” according to the common usage of the theologians, is taken for the assembly of bishops, not only consignifying the time

<i>Latin</i>	<i>English</i>
errorem contineant, vel non contineant? Sic tam de profanis, quàm sacris scriptoribus, poëtis, philosophis, oratoribus, sintne in suo genere eximij, mediocres, vel infimi?	during which that assembly endures in itself, but also consignifying the whole time during which its acts and decrees endure in the records of the Church and in the memory of men. For thus we speak of past Councils, when we ask whether they contain error or do not contain it. Thus also of profane writers no less than of sacred — poets, philosophers, orators — whether they are, in their kind, excellent, mediocre, or of the lowest rank.
Appendix — Obiectio aduersarii: Baron, <i>Apodixis Catholica</i> (1631), Tract. V, pp. 236–237, n. 7.	Appendix — The adversary’s objection: Baron, <i>Apodixis Catholica</i> (1631), Tract. V, pp. 236– 237, n. 7.
Quartò, quamvis in genere constaret Papæ ex Cathedra docentis sententiam esse supremam Ecclesiæ definitionem, non tamen constat in particulari sententias Martini V. aut Eugenii IV. aut Leonis X. aut Pii IV. Pontificum Romanorum, qui duobus superioribus sæculis Conciliorum decreta confirmarunt, non (inquam) constat	Fourthly: although it were established in general that the judgment of a Pope teaching from the Chair is the supreme definition of the Church, yet it is not established in particular that the judgments of Martin V, or Eugene IV, or Leo X, or

<i>Latin</i>	<i>English</i>
eorum sententias aut definitiones, esse sententias summorum Pontificum, hoc est, esse pronunciatas ab iis, qui erant veri Pontifices, & Petri Successores. Vnde necessariò sequitur nos plenam & firmam fidei certitudinem de authoritate Constantiensis, Basileensis, Lateranensis, & Tridentini Conciliorum non habere. Quis enim mortalium omnium certus est aut esse potest Martinum V. Eugen. IV. Leonem X. & Pium IV. verè Episcopos, immò vel Sacerdotes, vel baptizatos fuisse, vel ullum unquam Sacramentum aut recepisce, aut aliis ministrasse? Sacramenta apud vos <i>pendent ab intentione ministri</i>, hoc est, nullum Sacramentum verè conficitur, nisi Minister cum Sacramentum administrat, intendat id facere, quod facit Ecclesia. At de intentione Ministri conjectare & benè opinari possumus, sed firmam & plenam certitudinem fidei habere non possumus. Vnde Bellarminus, Lib. 3. de Iustificatione, Cap. 8. §. <i>Dicent: Non potest</i> (inquit) <i>quis esse certus certitudine fidei se percipere verum Sacramentum: cum Sacramentum sine intentione Ministri non conficiatur, & intentionem alterius nemo videre possit.</i>	Pius IV — the Roman Pontiffs who in the two preceding centuries confirmed the decrees of Councils — it is not established, I say, that their judgments or definitions are the judgments of supreme Pontiffs; that is, that they were pronounced by men who were true Pontiffs and successors of Peter. Whence it necessarily follows that we do not have a full and firm certitude of faith concerning the authority of the Councils of Constance, Basel, the Lateran, and Trent. For who of all mortals is certain, or can be certain, that Martin V, Eugene IV, Leo X, and Pius IV were truly Bishops — nay, that they were even Priests, or baptized, or ever either received any Sacrament or ministered one to others? Among you the Sacraments <i>depend upon the intention of the minister</i>; that is, no Sacrament is truly

<i>Latin</i>	<i>English</i>
Cum igitur nemo certò scire possit Martinum V. Eugen. IV. &c. fuisse Christianos seu Baptizatos, item fuisse Sacerdotes aut Episcopos, necessariò sequitur neminem certò scire posse, eos fuisse summos Pontifices, seu veros Petri Successores. Nam qui non est Sacerdos aut Episcopus, & multò magis qui non est Baptizatus, is summus Ecclesiæ Christianæ Pontifex esse nequit.	effected unless the Minister, when he administers the Sacrament, intends to do what the Church does. But concerning the intention of the Minister we can conjecture and think well; a firm and full certitude of faith we cannot have. Whence Bellarmine, book 3 On Justification, chapter 8, at the paragraph <i>Dicent</i>: “No one” (says he) “can be certain with the certitude of faith that he is receiving a true Sacrament, since the Sacrament is not effected without the intention of the Minister, and no one can see another’s intention.” Since therefore no one can know with certainty that Martin V, Eugene IV, etc., were Christians, that is, baptized — likewise that they were Priests or Bishops — it necessarily follows that no one can know with certainty that they were supreme Pontiffs, or true successors

<i>Latin</i>	<i>English</i>
	of Peter. For he who is not a Priest or a Bishop — and much more he who is not baptized — cannot be the supreme Pontiff of the Christian Church.